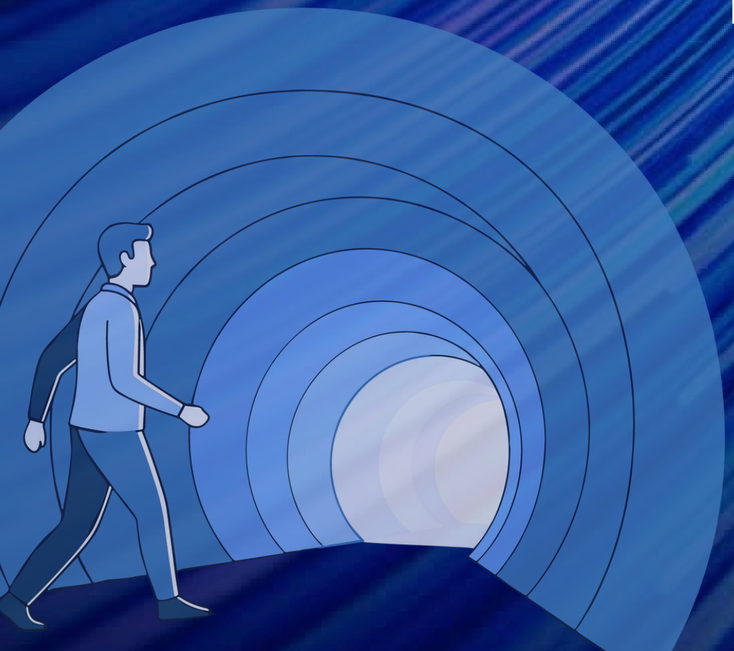
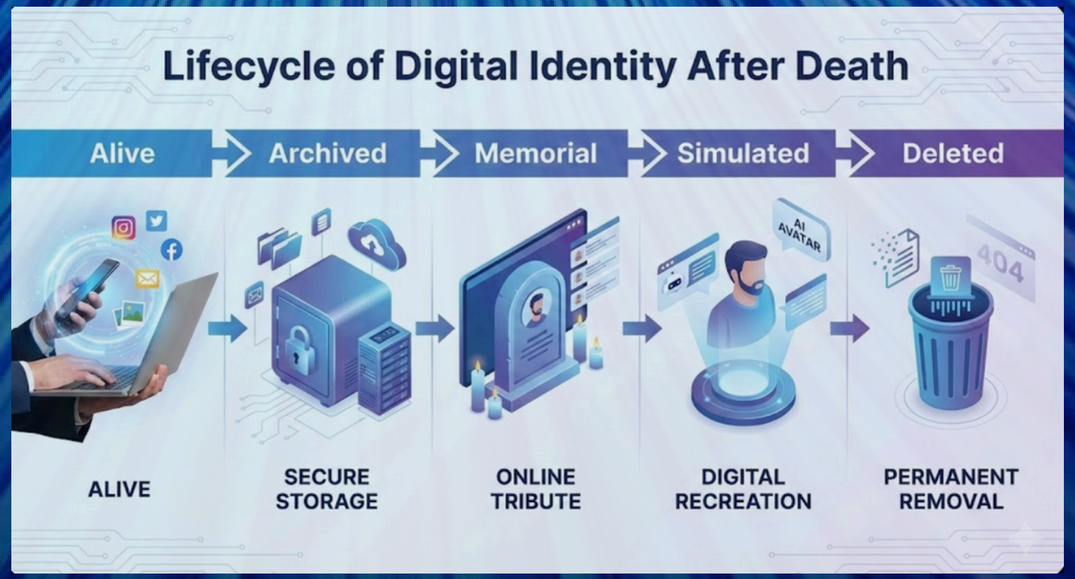
Data That Never Dies: Legal Rights and the Ethics of AI Resurrection

CS908 Research Methods - Assignment 2

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The Scale of the Problem

- The "Digital Graveyard" Phenomenon
- The Projection: Research from the Oxford Internet Institute predicts that dead users on Facebook could outnumber the living by 2070
- The Data Accumulation: Estimated 4.9 billion deceased profiles by 2100 if trends continue
- The Implication: A privatization of "Global Digital Heritage", human history controlled by Terms of Service (ToS) rather than historians or families.

The Legal Framework

- **The Legal Gap: Property vs. Privacy**
- **Traditional Assets: Physical items (cars, jewelry) are transferable property.**
- **Digital Assets: Historically treated as "non-transferable licenses" that expire on death.**
- **Legislative Breakthrough: The Property (Digital Assets etc) Act 2025 (UK).**
  1. *Explicitly recognizes digital files and crypto-tokens as "personal property."*
  2. *Legally empowers executors to manage digital estates.*



The "Wild West" of Service Agreements

- Apple: Strict privacy; requires pre-set "Legacy Contact."
- Facebook: "Memorialization" only (freezes account, no login access).
- Jurisdictional Friction: UK Property Rights vs. US Privacy Laws (Stored Communications Act).
- Result: "Orphaned Data" technically owned by inheritor but inaccessible due to corporate policy.

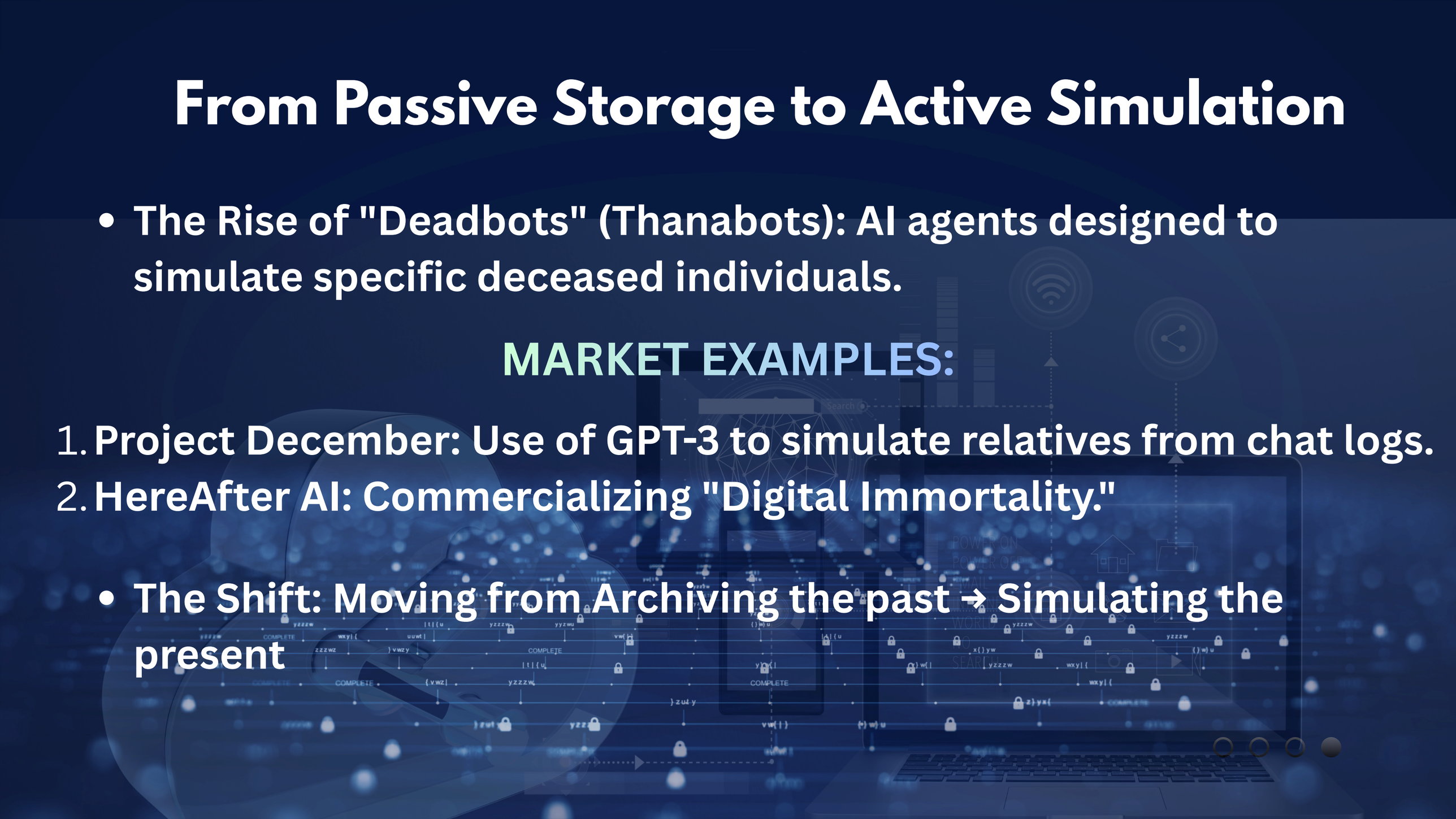
From Passive Storage to Active Simulation

- The Rise of "Deadbots" (Thanabots): AI agents designed to simulate specific deceased individuals.

MARKET EXAMPLES:

1. Project December: Use of GPT-3 to simulate relatives from chat logs.
2. HereAfter AI: Commercializing "Digital Immortality."

- The Shift: Moving from Archiving the past → Simulating the present



Case Study: Project December & The "Jessica" Simulation

- In 2021, Joshua Barbeau used "Project December" (powered by GPT-3) to simulate his deceased fiancée, Jessica.
- He uploaded her old texts and Facebook posts. The AI adopted her voice, memories, and personality with "uncanny accuracy."
- The "Second Death": OpenAI updated their safety policies and cut off the API access. The "Jessica" simulation was deleted overnight.
- Critical Analysis: This highlights the danger of relying on commercial SaaS (Software as a Service) for grieving. The user had no ownership of the "soul" he helped create.

How "Resurrection" Works ?

- Data Ingestion: Scraping the "Digital Footprint" (WhatsApp, Tweets, Emails) to build a corpus.
- Fine-Tuning: Training LLMs on personal idiolect (vocabulary, tone, sentence structure).
- RAG (Retrieval-Augmented Generation): Retrieving specific factual memories from a vector database to ground the AI's responses in truth.
- Multimodal Synthesis: Combining text with Voice Cloning (e.g., VALL-E) and Avatar generation.

Ethical Issue 1 - The Dead

1. **The Ethics of Consent & Dignity**

2. **Lack of Consent: Most deceased users never opted-in to AI simulation**
3. **Spectral Labor: Turning the deceased into involuntary data assets for corporate profit.**
4. **Reputational Risk / Hallucination: Risk of the AI "Ghost" endorsing products or political views the deceased opposed.**

QUESTION: DO THE DEAD RETAIN A RIGHT TO THEIR DIGITAL REPUTATION?

Ethical Issue 2 - The Living

- Impact on the Living: Psychological Risks
- Frozen Grief: Continuous interaction prevents the natural acceptance stage of grieving.
- Dependency: Addiction to the comfort of the simulation.
- The "Second Death" Risk: Commercial failure of the startup → Server shutdown.

Result: Sudden loss of the digital survivor, causing retraumatization.

A Proposed Framework

1: Legal Solution (The "GDPR for the Dead"):

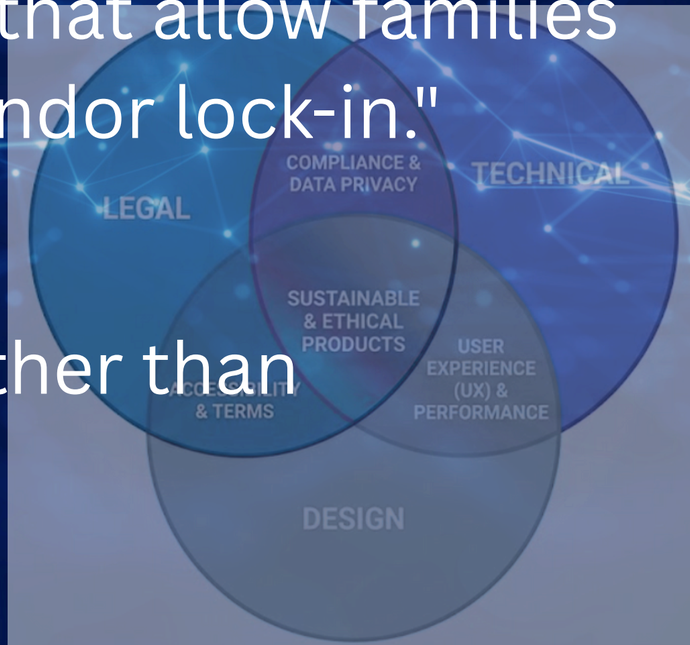
- Extension of data privacy rights to post-mortem status.
- Mandatory "Digital Executor" fields in all social media sign-ups.

2: Technical Solution (Interoperability):

- Standardized file formats (e.g., .JSON archives) that allow families to move memories off-platform, preventing "vendor lock-in."

3: Design Solution (Friction):

- "Memorial Modes" that are static (read-only) rather than interactive, to prevent addiction loops.



The Counter-Argument (Q&A)



"Why is inheriting a digital inbox different from inheriting physical letters?"

1. **The Networked Privacy Paradox:**
- Digital inboxes contain data from third parties who did not consent to exposure to heirs.

2. **Static vs. Dynamic:**
- **Physical Letters:** A static historical record (Truth).
- **AI Simulation:** Generative and dynamic (Fiction).
- **Risk:** The AI can generate false content that misrepresents the deceased.

Conclusion

- **The Future of Digital Mortality**
- **Legal Necessity: Global adoption of "Digital Wills" beyond the 2025 Act**
- **TECHNICAL RESPONSIBILITY:**

  "Design for Death": Implementing "Kill Switches" or "Memorial Modes" in software architecture.
- **FINAL CHOICE:**
- Preservation (Archive/Library) vs. Simulation (Interactive/Haunted House).
- We must prioritize the dignity of the user over the engagement of the platform.

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